

CV-24-008369 CHRISTIANSEN, JOSEPH vs SAVE MART SUPERMARKETS LLC - Defendant Save Mart Supermarket, LLC's Motion to Quash Plaintiff's Deposition of Person Most Qualified from Save Mart Supermarkets LLC and Request for Production of Documents at Deposition – CONTINUED, on the Court's own motion.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Court notes an important point of agreement between the parties, i.e. the collaboration on Bel-Aire West Notices, as well as Defendant's indication to Plaintiffs that it is in possession of the entire class list data. The Court also notes prior discussions between Defendants and prior Class Counsel about any overlapping discovery herein. The Court acknowledge the parties meet and confer efforts but is confident that Court that given the foregoing, further meet and confer between the parties will go a long way towards resolving the present discovery dispute. Accordingly, the parties are hereby ordered to further meet and confer ordered to engage in further meet and confer "either in person, by telephone or by videoconference" to address and or narrow down the issues in dispute, bearing in mind that parties have a broad right to discovery of relevant information and that discovery is supposed to be self-executing. (Civ. Proc. Code §§ 2016.040; 2017.010). Parties are also reminded that civil discovery is intended to be self-executing, and that argument is not the same as informal negotiation. Furthermore, a reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel; rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate. (Clement v. Alegre (2009) 177 Cal. App. 4th 1277). Additionally, good faith meet and confer communication should involve serious efforts at informal negotiation and resolution, including a meaningful assessment of the relative strengths and weaknesses of each party's position in light of all available information. (Townsend v. Superior Court (EMC Mortgage Co.) (1998) 61 Cal.App.4th 1431; Obregon v. Superior Court (Cimm's, Inc.) (1998) 67 Cal.App.4th 424). Consequently, the Court CONTINUES this matter to August 12, 2026, at 8:30 am in Department 24 of this Court for said meet and confer. The parties are further ordered to then file a joint statement by August 5, 2026, describing the efforts to meet-and-confer and any narrowing or resolution of the issues. Should counsel for the parties be unable to compromise, then they are directed to report in person at the continued hearing date and time and to come with the expectation of spending several hours further meeting and conferring face-to-face at the courthouse. (I borrowed this from Monica's TR).

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